

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Purchased:

-----X
OSCAR LIRIANO,

SUMMONS

Plaintiff,

Index No.:

-against-

Plaintiff designates
Bronx County as
the place of trial.

CITY OF NEW YORK AND DETECTIVE JAVIER
APONTE TAX ID NUMBER 937991,

Defendants.
-----X

The basis of venue is:
Location of Occurrence

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 7, 2016

Yours, etc.


TALKIN, MUCCIGROSSO & ROBERTS, LLP
Attorneys for Plaintiff, OSCAR LIRIANO
40 Exchange Place, 18th Floor
New York, New York 10005
212-482-0007
Our File # 12108B002

TO:

CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

DETECTIVE JAVIER APONTE, TAX ID NO. (937991)
NARCOTICS BOROUGH BRONX
1 POLICE PLAZA
NEW YORK, NEW YORK 10007

SUPRMEE COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
OSCAR LIRIANO,

Plaintiff,

-against-

CITY OF NEW YORK AND DETECTIVE JAVIER
APONTE TAX ID NUMBER 937991,

Defendants.

-----X

Date Purchased:

VERIFIED COMPLAINT

Index No.:

Plaintiff, OSCAR LIRIANO, by his attorneys, TALKIN, MUCCIGROSSO & ROBERTS, LLP, complaining of the Defendants, THE CITY OF NEW YORK and DETECTIVE JAVIER APONTE, TAX ID NUMBER 937991 respectfully alleges the following upon information and belief:

1. At all times hereinafter mentioned, Plaintiff, OSCAR LIRIANO, was and still is a resident of Bronx County, in the City and State of New York.
2. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK, was and still is a municipal corporation duly existing under the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the Police Department of the City of New York, including all police officers thereof.
4. At all times herein mentioned Defendant, DETECTIVE JAVIER APONTE, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York. DETECTIVE JAVIER APONTE is sued in his official capacity.
5. On March 24, 2016, Plaintiff duly served a Notice of Claim upon the City of New York in the manner and mode required by law.
6. That a statutory 50-h hearing was held on May 27, 2016.
7. That the Plaintiff has complied with all conditions precedent applicable to the instant action.

AS AND FOR A FIRST CAUSE OF ACTION

8. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “7” above as if fully set forth herein.

9. On November 10, 2015, at approximately 7:25 p.m., while plaintiff, OSCAR LIRIANO was lawfully inside the premises located at 37 West 183rd Street, in the County of the Bronx, in the City and State of New York, Plaintiff was falsely arrested without provocation or justification, by police officers of the New York City Police Department, including but not limited to, DETECTIVE JAVIER APONTE who is employed by Defendant, THE CITY OF NEW YORK.

10. As result of the foregoing, Plaintiff was arrested and suffered a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.

11. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

12. Plaintiff, repeats and reiterate each and every allegation contained in paragraphs numbered “1” through “11” above as if fully set forth herein.

13. On November 10, 2015 at approximately 7:25 p.m., while plaintiff OSCAR LIRIANO, was lawfully inside the premises located at 37 West 183rd Street, in the County of the Bronx, in the City and State of New York. Plaintiff was illegally searched without provocation or justification, by police officers of the New York City Police Department, including but not limited to, DETECTIVE JAVIER APONTE employed by Defendant, THE CITY OF NEW YORK.

14. As result of the foregoing, Plaintiff was illegally physically searched and suffered a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his

community.

15. As a result of the foregoing, Plaintiff, demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts

AS AND FOR A THIRD CAUSE OF ACTION

16. Plaintiff, repeats and reiterate each and every allegation contained in paragraphs numbered “1” through “15” above as if fully set forth herein.

17. On November 10, 2015, at approximately 7:25 p m., while plaintiff OSCAR LIRIANO, was lawfully inside the premises located at 37 West 183rd Street, in the County of the Bronx, in the City and State of New York. Plaintiff was wrongfully handcuffed, detained and arrested without provocation or justification, by police officers of the New York City Police Department, including but not limited to DETECTIVE JAVIER APONTE employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, did wrongfully detain and imprison the Plaintiff without probable cause, without an arrest warrant and in bad faith.

18. At the aforesaid time and place, Defendants wrongfully handcuff, arrested and forcibly detained, restrained the Plaintiff, OSCAR LIRIANO.

19. The Plaintiff, OSCAR LIRIANO, was subsequently arrested.

20. The criminal charges against the Plaintiff, OSCAR LIRIANO, were dismissed on February 16, 2016.

21. In commencing and continuing said wrongful detainment, Defendants caused Plaintiff to be wrongfully arrested and detained in violation Penal Laws of the State of New York and his constitutional rights.

22. At the time of the unlawful imprisonment, Plaintiff had not committed any illegal acts.

23. At the time of Plaintiff unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.

24. Plaintiff had not given Defendants probable cause to believe that he had committed any illegal acts.

25. At the time of Plaintiffs' unlawful imprisonment, Defendants knew or should have known through exercise of proper procedure and reasonable investigation that the aforementioned imprisonment was without justification.
26. Defendants, acted in bad faith and without justification in committing the aforesaid detention of Plaintiff.
27. Defendants willfully and wrongfully accused the Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.
28. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.
29. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.
30. In commencing and continuing said wrongful detainment, Defendants caused Plaintiff to be detained in violation of the Penal Laws of the State of New York and his constitutional rights.
31. At the time of the unlawful arrest and detainment, Plaintiff had not committed any illegal act.
32. At the time of Plaintiff unlawful arrest and detainment, Plaintiff had not committed or attempted to commit any crime.
33. Plaintiff had not given Defendants probable cause to believe that he had committed any illegal acts.
34. At the time of Plaintiffs' unlawful detainment, Defendants knew or should have known through exercise of proper procedure and reasonable investigation that the aforementioned detainment was without justification.
35. Defendants acted in bad faith and without justification in committing the aforesaid detention of Plaintiff.
36. Defendants willfully and wrongfully accused the Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.

37. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

38. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

39. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “38” above as if fully set forth herein.

40. On November 10, 2015, at approximately 7:25 p.m., while plaintiff, OSCAR LIRIANO, was lawfully inside of the premises located at 37 West 183rd Street, in the County of the Bronx, in the City and State of New York. Plaintiff was falsely arrested and wrongfully detained without provocation or justification, by police officers of the New York City Police Department, including but not limited to DETECTIVE JAVIER APONTE, employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees.

41. Defendant, THE CITY OF NEW YORK, by and through its agents, servants and/or employees, negligently and carelessly performed their duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have under similar circumstances.

42. As a result of Defendants’ negligence Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

43. As a result of the foregoing, Plaintiff, demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

44. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “43” above as if fully set forth herein.

45. On November 10, 2015, at approximately 7:25 p.m., while Plaintiff, OSCAR LIRIANO, was lawfully inside the premises located at 37 West 183rd Street, in the County of the Bronx, in the City and State of New York. Defendant, CITY OF NEW YORK, through its agents, servants and /or employees, improperly, forcibly and without warrant right or privilege arrested Plaintiff.

46. Plaintiff was handcuffed, falsely arrested, illegally physically searched, and detained without provocation or justification by Defendants.

47. Plaintiff was arrested and detained and illegally physically searched against his will.

48. Said detention was without warrant, probable cause and/or justification.

49. The actions of Defendant, CITY OF NEW YORK, its agents, servants and/or employees heretofore described constitute unlawful arrest and detention and imprisonment and were designed to and did cause a violation of the Plaintiffs' Constitutional Rights as guaranteed under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution and the Constitution of the State of New York.

50. Defendants violated Plaintiffs' civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. § 1983, of the U.S. Constitution and the Constitution of the State of New York.

51. The actions of Defendants, heretofore described constitute unlawful detention, imprisonment were designed to and did cause a violation of the Plaintiffs' Constitutional Rights as guaranteed under 42 U.S.C. § 1983 and United States Constitution, Fourth and Fourteenth and the Constitution of the State of New York.

52. That the conduct and action of Defendants acting in concert and under color of State Law in detaining Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without justification, and was designed to and did cause a violation of Plaintiffs' Constitutional Rights as guaranteed under 42 U.S.C. §1983 and United States Constitution, Fourth and Fourteenth and the Constitution of the State of New York.

53. Defendants, deprived Plaintiff of his liberty in violation of his civil and constitutional rights as guaranteed under 42 U.S.C. § 1983 and United States Constitution, Fourth and Fourteenth Amendments and the Constitution of the State of New York.

54. Defendants were in the vicinity of the 37 West 183rd Street, in the County of the Bronx, in the City and State of New York, and without warrant and without probable cause in violation of Plaintiffs' civil rights and constitutional rights as set forth in the Fourth Amendment of the United States Constitution.

55. The actions taken by Defendant, CITY OF NEW YORK's agents, servants and/or employees were undertaken under color of law and would not have existed but for said Defendant, CITY OF NEW YORK's agents, servant and/or employees using their official power.

56. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer a violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

57. As a result of Defendant's impermissible conduct, Plaintiff demand judgment against Defendants in a sum of money which exceed the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

58. Plaintiff repeats and reiterates each and every allegation contained in paragraphs number "1" through "57" above as if fully set forth herein.

59. The supervisors and policy making officer of Defendant, CITY OF NEW YORK and its Police Department as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

60. Defendant, CITY OF NEW YORK, has failed to properly train and effectively train their employees, including but not limited to DETECTIVE JAVIER APONTE with regard to the proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

61. Defendant, CITY OF NEW YORK, hired and retained in its employ certain police officers with knowledge that said officers had vicious propensities and were therefore unfit to be police officers.

62. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

63. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

64. Plaintiff repeat and reiterate each and every allegation contained in paragraphs numbered “1” through “63” above as if fully set forth herein.

65. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers with knowledge that said police officers lacked the experience to be employed by the aforementioned Defendants, and therefore were unfit to be police officers.

66. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers, with the knowledge that said police officers lacked deportment to be employed by the aforementioned Defendant, and therefore, were unfit to be officers.

67. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers, with that said officers had vicious propensities and were therefore unfit to be officers.

68. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

69. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

70. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “69” above as if fully set forth herein.

71. Defendants’ conduct toward Plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

72. Defendants acted with desire to cause Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such distress to said Plaintiff.

73. Defendants acted with utter disregard of the consequences of their actions.

74. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

75. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, and requests compensatory and punitive damages in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, an award for reasonable attorney's fees, cost and disbursements of this action; and such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
June 7, 2016

Yours, etc.



TALKIN, MUCCI GROSSO & ROBERTS, LLP
Attorneys for Plaintiff, OSCAR LIRIANO
40 Exchange Place, 18th Floor
New York, New York 10005
212-482-0007

ATTORNEY'S VERIFICATION

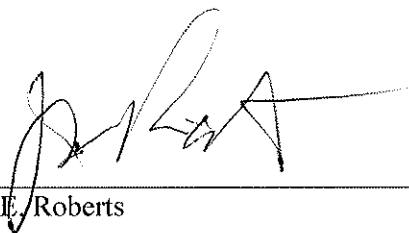
Jonathan E. Roberts, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at TALKIN, MUCCIGROSSO & ROBERTS, LLP, attorneys of record for Plaintiff, OSCAR LIRIANO.

I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not presently reside in the county wherein I maintain my offices.

DATED: New York, New York
June 7, 2016



Jonathan E. Roberts

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index #:

OSCAR LIRIANO,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT AND
DETECTIVE JAVIER APONTE, TAX ID NUMBER (951850),

Defendants

SUMMONS AND VERIFIED COMPLAINT

TALKIN, MUCCIGROSSO & ROBERTS, L.L.P.
Attorneys for Plaintiff, OSCAR LIRIANO
40 Exchange Place, 18th Floor
New York, New York 10005
(212) 482-0007

To:
Attorney(s) for
Service of a copy of the within is hereby admitted.

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE
NOTICE OF
ENTRY



That the within is a (certified) true copy of a
Entered in the office of the Clerk of the within named
Court on 20.

NOTICE
OF
SETTLEMENT



That an Order of which the within is a true copy will be
Presented to the Hon. , one of the
judges of the within named Court, at

, New York , on 20,

Dated:

TALKIN, MUCCIGROSSO & ROBERTS, L.L.P.
Attorneys for Plaintiff
40 Exchange Place, Suite 1800
New York, New York 10005